PRINCIPAL DIRECTOR, IMMIGRATION N.O.
and
PROSPER KAMBARAMI
versus
JEROME NDUBUISE OKEKE

HIGH COURT OF ZIMBABWE
MAWADZE DJP and WAMAMBO J
HARARE,16 September 2025 and 23 July 2026

Civil Appeal

G Madzola, for the Appellants
T G Kuchenga, for the Respondent

WAMAMBO J:

The respondent had long held permanent residence status in Zimbabwe. When his earlier passport expired, he sought transfer of the permanent residence sticker from passport number A07038050 to passport number B50042675. In the main application, the Magistrates' court granted a mandatory interdict ordering that the "Respondent or any of its officials" immediately transfer the applicant's permanent residence sticker from the old passport to the new passport. The draft order in the record shows no additional requirement that the transferred sticker be "unaltered," and the handwritten endorsement on that draft order indicates there was to be no order as to costs.

The later contempt record shows that on 18 January 2023 the respondent paid the requisite fee and that a permanent residence permit was issued in the new passport. The contempt founding affidavit itself acknowledges that "a" sticker was transferred, but complains that it was materially different because it bore an endorsement requiring the respondent to enter Zimbabwe on or before 18 February 2023. The exhibits in the record include both the earlier permit and the later permit; the later permit still bears the heading "The Republic of Zimbabwe Permanent Residence Permit" and contains a PRP number.

The respondent then instituted contempt proceedings against five respondents. In that contempt founding affidavit, the then second, third and fourth respondents below were expressly cited in their personal capacities, while the first and fifth respondents were cited in

official capacities. Prosper Kambarami, now the second appellant, was the fourth respondent below and was expressly cited in his personal capacity. The Regional Magistrate upheld misjoinder in respect of the second, third and fifth respondents below, but held the first and fourth respondents below in contempt, sentenced them to 90 days' imprisonment wholly suspended, and required them to purge the contempt within seven days by transferring an "unaltered" permanent residence sticker from the old passport to the new passport.

The following grounds are reproduced verbatim from the notice of appeal contained in the uploaded record.

1. The *Court a quo* erred in holding that the judgment from which contempt of proceedings arose was valid despite the absence of an existing, and identifiable respondents to that judgment.
2. The Court erred in holding that there was no misjoinder of the second Appellant herein when the second Appellant had been cited in his personal capacity in respect of issues arising from his acts, and alleged omissions as an employee of the State.
3. The *Court a quo* erred in holding that the citation of the appellant was valid, despite such citation being contrary to the provisions of section 4 of the State Liabilities Act.
4. The *Court a quo* erred in holding that by deposing to the opposing affidavit in the proceedings from which contempt of court arose, the second Appellant became a party to those proceedings, and therefore liable to the sanction of contempt of court arising out of the alleged disobedience to the order in the main matter,
5. The *Court a quo* erred in holding that it was not necessary for it to deal with some of the preliminary objections raised before it, particularly the objection to citation of the second Appellant herein in his personal capacity.
6. The *Court a quo* erred in holding that the first Appellant, a non-existent persona was guilty of contempt of court.
7. The *Court a quo* grossly erred in holding that the second Appellant was guilty of contempt of an order to which he was not a party.
8. The *Court a quo* erred in holding that the second Appellant was guilty of contempt of court without first examining the Appellant's duties within the department of immigration, and specifically in respect of the issues from which the alleged contempt of court arose.

9. The *Court a quo* erred in holding that there was disobedience to the court order which constituted contempt of court, when the Respondent had been issued with a permanent resident permit as directed by the Court.
10. The *Court a quo* erred in holding that the invitation for the Respondent to present himself at the offices of the Department of Immigration constituted contempt of court, when such invitation did not detract from the issuance of permanent residence sticker to the Respondent.

The *Kayamandi Town Committee* v *Mkawaso and Ors* 1991(2) SA 639 (C) reflects that Persons are made parties by citation, not by generalized notification; it further holds that failure to identify defendants or respondents is destructive of the notion that a court order operates only inter parties. The case of *Gariya Safaris (Pvt) Ltd* v *Van Wyk* 1996 (2) ZLR 246 (H) Safaris is to the same effect, holding that proceedings and judgment following summons issued against a non-existent defendant are null and void. Also See *Veritas* v *ZEC & 2 Ors* SC 103/20 . In this matter the lower Court reasoned that, even if no title of "Principal Director of Immigration" existed, the head of the department should answer because officials had previously responded to that name. With respect, that was not a legal answer to the objection. It amounted to an unsolicited substitution without amendment and without first deciding the statutory point made under section 4 of the State Liabilities Act [*Chapter 8:14*]. Grounds 1, 3 and 6 are therefore upheld.

The contempt founding affidavit expressly cited Prosper Kambarami in his personal capacity, yet the alleged conduct arose from functions performed as an official within the Department of Immigration. The same record also shows that in the main application he was not a named litigant, but merely deposed to an affidavit opposing that application on behalf of the first respondent. The magistrate's conclusion that by deposing to that affidavit he thereby became a party to the earlier proceedings—and so personally amenable to sanctions for contempt—cannot be reconciled with the inter parties nature of judgments and contempt proceedings as emphasized in the appellants' heads and authorities. Nor can it be reconciled with the court *a quo's* own simultaneous holding that the second, third and fifth respondents below were misjoined because they had not been parties to the initial proceedings. The objection to the second appellant's personal citation therefore went to the root of the matter and ought to have been decided squarely; it was a material misdirection to say that most of the points *in limine* were not capable of disposing of the matter and that the court would "not delve much" into them. Grounds 2, 4, 5, 7 and 8 must accordingly be upheld.

The original mandatory interdict ordered only that the permanent residence sticker be immediately transferred from the old passport to the new passport. It did not require that the later permit be an "unaltered" clone of the earlier one. It did not prohibit further administrative engagement by immigration officials. It did not direct that no endorsement at all could be placed on the permit. Yet the contempt order punished the appellants for failure to transfer an "unaltered" sticker and made that newly introduced adjective the condition for avoiding imprisonment. That was an impermissible enlargement of the original order. Contempt enforces an extant order; it does not authorize a court to rewrite the order and then punish supposed disobedience of the rewritten version.

The contemporaneous documents also undercut the factual finding of non-compliance. The respondent's own contempt affidavit acknowledges that the authorities "proceeded to transfer 'a' sticker" to the new passport. The exhibit in the new passport remains headed "The Republic of Zimbabwe Permanent Residence Permit" and bears a PRP number. The dispute was therefore not whether a permanent residence permit had been issued, but whether the endorsement placed upon it was acceptable to the respondent. At most, the record discloses a dispute about the legal propriety of an endorsement and a demand to present oneself to immigration offices; it does not disclose proved contempt of the order actually granted on 11 January 2023. Grounds 9 and 10 must likewise be upheld.

The respondent's reliance on *Econet Wireless (Pvt) Ltd* v *Minister of Public Service Labour and Social Welfare & Ors* SC 31/16 does not alter that conclusion. That authority underscore the general duty to obey lawful orders until set aside. They do not authorize a court to disregard defects that go to the identity and citation of parties, nor do they convert substantial compliance into contempt by reading additional terms into the original order. Similarly, the respondent's reliance on *Udor* and *Osita Bonface Uzoigwe* HH 82/11 does not assist on this record, because no properly regularized amendment identifying an extant official title was sought or granted before penal contempt sanctions were imposed. All ten grounds therefore succeed.

On costs, the ordinary rule should apply. The appellants have succeeded in showing serious legal and factual misdirection in the contempt ruling. The respondent sought coercive and penal relief in circumstances where the original order had already been acted upon, where the later contempt order expanded the original obligation, and where the parties and officials against whom contempt was sought were not properly and consistently placed before

the court. There is no sufficient basis on this record for punitive costs either way. The proper order is costs to the successful appellants on the ordinary scale, together with substitution of the lower court's order by dismissal of the contempt application with costs

This is an appeal against the judgment of the Regional Magistrate, L Ncube, in contempt proceedings. For the reasons set out above, we am satisfied that the appeal is meritorious. The court a quo misdirected itself on the validity of the citation of the first appellant, on the personal joinder and liability of the second appellant, on the necessity of deciding the dispositive preliminary objections, and on the factual question whether contempt had in fact been proved. The original order required the transfer of the respondent's permanent residence sticker; it did not require the transfer of an "unaltered" sticker, and it did not prohibit later administrative invitation or verification. The contempt finding and the suspended sentence cannot stand.

It is ordered that:

The appeal be and is hereby allowed with costs.

The judgment of the Court *a quo* is set aside and It is substituted with the following:

"The application for contempt of court is dismissed with costs."

WAMAMBO J :…….

MAWADZE DJP: I agree**……..**